

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): The Moore Law Group, A Professional Corporation*Harvey Moore(101128) Chinyere A. Abuka(303286) Matthew Keim(331020) Jason Burrows(309882) Chan Hsu(334555) Nicholas Morello(337656) John Phan(338677) Linda Doan(343453) Angela Dawson(209860) Christine Siduguen(240380) Jeremy LaForge(350818) PO Box 25145, Santa Ana, CA 92799-5145, 3710 S. Susan Street, Ste 210, Santa Ana, CA 92704 TELEPHONE NO.: 800-506-2652 FAX NO. (Optional): E-MAIL ADDRESS (Optional): CALit@collectmoore.com ATTORNEY FOR (Name): Plaintiff	FOR COURT USE ONLY Electronically Filed by Superior Court of CA, County of Santa Clara, on 5/20/2024 12:00 AM Reviewed By: F. Miller Case #24CV430538 Envelope: 15377816
SUPERIOR COURT OF CALIFORNIA, COUNTY OF Santa Clara STREET ADDRESS: 191 North First Street MAILING ADDRESS: CITY AND ZIP CODE: San Jose CA 95113 BRANCH NAME: Santa Clara County - San Jose Courthouse	REQUEST FOR DISMISSAL
PLAINTIFF/PETITIONER: Discover Bank DEFENDANT/RESPONDENT: Patrick T Hickey	
CASE NUMBER: 24CV430538	
A conformed copy will not be returned by the clerk unless a method of return is provided with the document.	
This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)	

1. TO THE CLERK: Please dismiss this action as follows:

- a. (1) ☐ With prejudice (2) ☒ Without prejudice
- b. (1) ☐ Complaint (2) ☐ Petition
- (3) ☐ Cross-complaint filed by (name):
- (4) ☐ Cross-complaint filed by (name):
- (5) ☒ Entire action of all parties and all causes of action
- (6) ☐ Other (specify):*

on (date):

on (date):

2. (Complete in all cases except family law cases.)

The court ☐ did ☒ did not waive court fees and costs for a party in this case. (This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed).

Date:

MAY 15 2024
 Harvey Moore Matthew Keim Angela Dawson Christine Siduguen Jason Burrows Chan Hsu Nicholas Morello John Phan Linda Doan Chinyere A. Abuka Jeremy LaForge
 (TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

(SIGNATURE)

*If dismissal requested is of specified parties only of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed.

Attorney or party without attorney for:

- ☒ Plaintiff/Petitioner ☐ Defendant/Respondent
- ☐ Cross-Complainant

3. TO THE CLERK: Consent to the above dismissal is hereby given.**

Date:

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

(SIGNATURE)

** If a cross-complaint – or Response (Family Law) seeking affirmative relief – is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581 (f) or (g).

Attorney or party without attorney for:

- ☐ Plaintiff/Petitioner ☐ Defendant/Respondent
- ☐ Cross-Complainant

(To be completed by clerk)

5/20/2024 12:00 AM

4. ☒ Dismissal entered as requested on (date):
5. ☐ Dismissal entered on (date):

as to only (name):

6. ☐ Dismissal not entered as requested for the following reasons (specify):

5/20/2024 12:00 AM

7. a. ☒ Attorney or party without attorney notified on (date):
b. ☐ Attorney or party without attorney not notified. Filing party failed to provide

☐ a copy to be conformed ☐ means to return conformed copy

Date: 5/20/2024 12:00 AM

Clerk of Court Clerk, by /s/ F. Miller

Deputy

PLAINTIFF/PETITIONER: Discover Bank DEFENDANT/RESPONDENT: Patrick T Hickey	CASE NUMBER: 24CV430538
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COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover \$10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

Declaration Concerning Waived Court Fees

1. The court waived court fees and costs in this action for (name):
2. The person named in item 1 is (check one below):
 - a. ☐ not recovering anything of value by this action.
 - b. ☐ recovering less than \$10,000 in value by this action.
 - c. ☐ recovering \$10,000 or more in value by this action. (If item 2c is checked, item 3 must be completed.)
3. ☐ All court fees and court costs that were waived in this action have been paid to the court (check one): ☐ Yes ☐ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

 (TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY MAKING DECLARATION)

 (SIGNATURE)